

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR
EXAMINERS
STATE OF COLORADO

Case No. 2019-6642

FINAL BOARD ORDER

IN THE MATTER OF THE DISCIPLINARY PROCEEDINGS REGARDING MARIANNA
CARNES, LPC, LICENSE NUMBER LPC-0005548,

Respondent.

The State Board of Licensed Professional Counselor Examiners (“Board”), pursuant to and after formal proceedings before a duly qualified Administrative Law Judge (“ALJ”) in accordance with the provisions of section 12-245-101, et al., of the Colorado Revised Statutes (“Act”) and the Administrative Procedure Act (“APA”), and having reviewed the ALJ’s Initial Decision Upon Default, hereby enters the following findings and order:

1. Respondent Marianna Carnes (“Respondent”) was served with a Notice of Charges on March 15, 2022.
2. On or about May 6, 2022, the Board, by and through counsel, filed a Motion for Entry of Default with the Office of Administrative Courts. The ALJ issued an Entry of Default on May 23, 2022.
3. The ALJ’s Entry of Default was mailed to Respondent by first class mail to the address of record on May 23, 2022.
4. The ALJ’s Initial Decision Upon Default was rendered on June 9, 2022 and received by the Board on June 10, 2022. A copy of the Initial Decision Upon Default is attached to this Order and incorporated herein by reference.
5. The Initial Decision was served on Respondent and the Board’s prosecuting attorney on June 14, 2022, via first-class mail and electronic mail.
6. Neither the Board’s prosecuting attorney nor Respondent filed exceptions.
7. Upon review of the Initial Decision and Record, the Board hereby:
 - a. Accepts the Findings of Fact, as set forth in paragraphs one through eighteen of the attached Initial Decision, in their entirety

- b. Adopts the Conclusions of Law, as set forth in paragraphs nineteen through twenty-three of the attached Initial Decision, in their entirety.
- c. Adopts the ALJ's recommended sanction of Revocation, as set forth in the final paragraph of the attached Initial Decision.

8. IT IS THEREFORE ORDERED by the BOARD that Respondent's license to practice professional counseling in the state of Colorado is hereby REVOKED from the effective date of this Final Board Order. The Final Board Order is hereby effective upon service to Respondent. Any party adversely affected or aggrieved by any agency action may commence an action for judicial review before the Court of Appeals within forty-nine (49) days after such action becomes effective. Reference sections 24-4-106(11) and 12-20-408, C.R.S.

SO ORDERED this 15th day of July, 2022.

FOR THE STATE BOARD OF LICENSED
PROFESSIONAL COUNSELOR EXAMINERS



KAREN M. MCGOVERN
DEPUTY DIRECTOR OF LEGAL AFFAIRS

STATE OF COLORADO OFFICE OF ADMINISTRATIVE COURTS 1525 Sherman Street, Denver, CO 80203	
State Board of Licensed Professional Counselor Examiners Petitioner VS. Marianna Carnes Respondent	
	▲ COURT USE ONLY ▲
	CASE NUMBER: PCE 2022-0001
NOTICE OF ORDER ISSUANCE	

The attached Initial Decision Upon Default was issued in the above referenced case.

Dated: June 10, 2022

/s/ Adriana Chavez

Adriana Chavez
Court Clerk

STATE OF COLORADO OFFICE OF ADMINISTRATIVE COURTS 1525 Sherman Street, 4th Floor, Denver, Colorado 80203	▲ COURT USE ONLY ▲ CASE NO.: PCE2022-0001
STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS, Petitioner, vs. MARIANNA CARNES, License No. LPC 5548, Respondent.	
INITIAL DECISION UPON DEFAULT	

This case is a disciplinary proceeding before the State Board of Licensed Professional Counselor Examiners ("Board"), involving the professional counseling license of Marianna Carnes ("Respondent"). Angela R. Zippin, Assistant Attorney General Fellow, represented the Board. Respondent failed to file a responsive pleading to the Notice of Duty to Answer, Notice to Set, Notice of Hearing, and Notice of Charges ("Notice of Charges"). Based upon Respondent's failure to timely respond to the Notice of Charges, and the Board's Motion for Entry of Default, an Entry of Default was issued on May 23, 2022. Respondent then had ten days to show good cause why the Entry of Default should be set aside. § 24-4-105(2)(b), C.R.S. Respondent did not file a motion to set aside the default, and this matter is ready for issuance of an Initial Decision.

FINDINGS OF FACT

Procedural Facts

1. Respondent is a licensed professional counselor ("LPC") within the State of Colorado, license number LPC 5548.
2. Respondent was licensed as an LPC on January 25, 2010 and her licensed expired on August 31, 2021.
3. The last mailing address furnished by Respondent to the Board is [REDACTED]
4. On March 15, 2022, the Board filed its Notice of Charges against Respondent with the Office of Administrative Courts ("OAC").

5. Pursuant to section 24-4-105(2)(a), C.R.S., the Notice of Charges was sent by first class mail to Respondent at her last known address on file with the Board.

6. Respondent's responsive pleading to the Notice was due on or before April 14, 2022.

7. The Notice set forth that Respondent's failure to file a responsive pleading within 30 days could result in a default decision being issued.

8. The Board's Motion for Entry of Default was mailed to Respondent by first class mail to the address stated above on May 6, 2022.

9. The Administrative Law Judge's Entry of Default was mailed to Respondent by first class mail to the address stated above on May 23, 2022.

10. Respondent did not file a motion to set aside the Entry of Default.

Underlying Facts

11. On September 18, 2019, the Board received a complaint ("Complaint") alleging Respondent had engaged in the abandonment of at least one client ("September 11 Appointment") and had a mental health disorder that affected Respondent's ability to safely practice as an LPC.

12. On September 20, 2019, the Complaint was referred to the Department of Regulatory Agencies' Office of Investigations for further investigation.

13. On September 20, 2019, Board staff sent Respondent a copy of the Complaint and requested a response to the allegations contained therein within 30 days.

14. On November 8, 2019, Respondent submitted a response to the allegations contained in the Complaint, explaining that:

- a. In September 2019, she experienced a security breach in which the confidentiality of her clients was compromised;
- b. The perpetrators of the security breach personally threatened Respondent, her family members, and her clients; and
- c. Respondent did not arrive for work for the September 11 Appointment because she was concerned about her safety and the safety of her clients and coworkers.

15. Upon the Board's review of the documents and information presented, the Board found reasonable cause to believe that Respondent may be unable to practice professional counseling with reasonable skill and safety because of a condition or conditions described in section 12-245-226(2)(d)(I), C.R.S.

16. On March 18, 2020, the Board issued a *Board Order Pursuant to § 12-245-226(2)(d)(I), C.R.S.* ("March 2020 Order"), directing Respondent to contact Peer Assistance Services ("PAS") within seven calendar days to schedule a mental status examination ("MSE"). The March 2020 Order required that the MSE be conducted within 30 calendar days.

17. Respondent failed to schedule the MSE within the proscribed time period as required by the March 2020 Order.

18. As of the date of this pleading, Respondent has failed to schedule or undergo the MSE as required by the March 2020 Order.

CONCLUSIONS OF LAW

19. Respondent has received timely notice of the time, place, and nature of this hearing; of all matters of fact and law asserted; and of all matters required by section 24-4-105(2)(a), C.R.S., in the manner required by that section.

20. The Board has jurisdiction over Respondent and the subject matter of these proceedings as set forth in the Colorado Mental Health Practice Act, sections 12-245-101, *et seq.*, C.R.S. ("MHPA")¹.

21. Respondent failed to submit to an MSE, in violation of the March 2020 Order and as required by section 12-245-226(2)(d)(I), C.R.S.

22. Respondent's failure to comply with the March 2020 Order constitutes a violation of section 12-245-224(1)(b), C.R.S.

23. Respondent's violation of section 12-245-224(1)(b), C.R.S., is grounds for the Board to revoke Respondent's license to practice as an LPC pursuant to § 12-245-225(1)(c), C.R.S.

INITIAL DECISION

When the Board has proven that a licensee has committed a violation of the MHPA, it may impose discipline in the form of probation, suspension, or revocation of the registration. §§ 12-245-225 and 12-20-404, C.R.S. In this matter, the Board seeks

¹ Previously section 12-43-101 *et seq.*, C.R.S., prior to recodification of Title 12 effective October 1, 2019.

revocation of Respondent's license to practice as an LPC. Respondent failed to file a responsive pleading to the Notice of Charges or present any mitigating factors. There is no information before the Administrative Law Judge indicating that some sanction other than revocation of Respondent's license is appropriate in this case. Respondent's failure to appear demonstrates a lack of interest in maintaining her Colorado license. It is therefore the Initial Decision of the Administrative Law Judge that Respondent's license to practice as an LPC be revoked.

DONE AND SIGNED this 9th day of June, 2022.

/s/ Heidi L. Kutcher
Heidi L. Kutcher
Administrative Law Judge